IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 6

CP(CAA) No. 30/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:

Fim Holdco I Ltd. & Anr. ...Transferor Company

And

One World Center Pvt. Ltd. ...Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 20.11.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner : Ms. Munisha Gandhi, Senior Advocate
Mr. Vaibhav Sharma, Advocate
Ms. Salina Chalana, Advocate

For the RD : Mr. Vinod Sharma, RD in person (Virutally)
Mr. Shashi Raj Dara, Joint Director (Virtually)
Ms. Kamna Sharma, Registrar of Companies
Mr. Vineet Khatri, Company Prosecutor for RoC

For the Income Tax : Mr. Yogesh Putney, Senior Standing Counsel

ORDER

Report of Regional Director has been filed by Dr. Kishor Kumar Devarwade, Assistant Director vide Diary No. 02459/4 dated 05.11.2024, report of Income Tax Department has been filed through Mr. Yogesh Putney, Senior Standing counsel vide Diary No. 02459/5 dated 18.11.2024, affidavit of service has been filed by Mr. Vaibhav Sharma, Advocate vide Diary No.

02459/6 dated 18.11.2024 and affidavit cum undertaking by the petitioner company has been filed through Mr. Vaibhav Sharma, Advocate vide Diary No.02459/7 dated 18.11.2024. All are taken on record.

It has been noted that RD in its report has referred to the observations in the RoC report dated 16.10.2024 and transferee company response thereto vide its letter dated 19.10.2024 and has not given any opinion considering the response of the transferee company. During the course of the hearing, RD was requested to give opinion, upon which it is stated by the RD that he cannot record either satisfaction or dissatisfaction to the response of Transferee Company on the observations made by RD and it is for the NCLT to take a view in the matter.

It is noted from Section 230 (5) of the Companies Act, 2013 that the notice is required to be issued to both the RD (on behalf of the Central Government) and RoC separately and therefore it appears that both are required to submit their separate reports. While the RD is required to submit its report on behalf of the Central Government covering the wider horizon than the RoC but it is seen that RD has been enclosing the report of the RoC and raising the observations, which are already there in the RoC report, which it appears is defeating the basic purpose of having separate reports from RD and RoC. Let the copy of the order be sent to learned Secretary, MCA New Delhi with the request to clarify the issue.

It is submitted by learned Senior Counsel for the petitioner companies that they are private limited companies and therefore they are not required to have any Managing Director or Full Time Director. It is further stated by

learned Senior Counsel that there are only two directors in each of the companies, who have signed the certificates filed as Annexure A-2 at page no.72 with respect to the Transferee Company, as Annexure A-14 at page no.261 with regard to the Transferor Company No.1 and as Annexure A-20 at Page No.296 with regard to the Transferor Company No.2.

Learned counsel for the petitioner companies is directed to file an affidavit with respect to the exemption under Competition Act, 2002 giving the relevant Sections/Rules/Regulations along with supporting details within one week.

The learned counsel of the petitioner company submitted that both the Transferor Companies, being the foreign companies under the Companies Act, 2013, are Non-Petitioner Companies and therefore petition for approval of scheme has been filed in the Mauritius Court, which has the jurisdiction over Transferor Companies. Learned counsel was directed to submit a copy of the order of the Mauritius Court approving the merger of the Transferor Companies with the Transferee Company.

Heard. Order Reserved.

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(UMESH KUMAR SHUKLA)
MEMBER (T)

(HARNAM SINGH THAKUR)
MEMBER (J)

SM